THABITA CHAZUKA
versus
VENGAI GODFREY SHATA
and
CHIMOYO HOUSING COOPERATIVE
and
MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS

HIGH COURT OF ZIMBABWE
MAWADZE DJP AND WAMAMBO J
HARARE; 21 October 2025 and 23 July 2026

Civil Appeal

MK Chigudu, for the appellant
E Dondo, for the 1st and 2nd respondents
ST Mhuruyengwe, for the 3rd respondent

WAMAMBO J:

This appeal is against the Magistrates' court order of 27 May 2025 dismissing what was, in substance, a composite application seeking three distinct forms of relief: joinder in already concluded proceedings, rescission of the default judgment granted on 31 March 2022 under HREC-CG 149/22, and restoration of possession after execution of the writ.

The consolidated record shows that in 2022 the first respondent sued the second and third respondents for eviction in respect of Stand 6379 Retreat Township, Waterfalls, Harare. Summons claimed eviction of the second respondent "and all those claiming occupation through it." Default judgment was granted on 31 March 2022. A writ of ejectment and execution followed on 21 April 2022. The appellant says she had occupied the stand since 2012, was not cited in the 2022 action, and was evicted only when the writ was executed on 15 April 2025. She then filed, on or about 24 April 2025, an application framed as one for rescission in terms of Order 30 Rule 4(1) of the Magistrates Court Rules, 2019. Yet in that same founding affidavit she also sought restoration of possession and stated that rescission should permit her to be joined and to defend the original case. The magistrate dismissed the application on 27 May 2025. The present appeal followed on 29 May 2025.

The appellant's founding affidavit asserted, among other things, that she was not in wilful default because she had never been cited; that the 2022 order was erroneously granted in her absence as an interested party; that an earlier dispute concerning the same stand had existed under case number 19044/17; that the dispute had at some stage been referred to the Registrar of Co-operatives under section 115 of the Co-operative Societies Act; that the first respondent's claim was prescribed and *res judicata*; and that restoration of possession should follow rescission. The first and second respondents opposed the application and produced material recognizing the first respondent, not the appellant, as the person allocated and leased the stand, including a lease-to-purchase agreement, ministerial confirmation, and municipal approvals. They also disputed that the appellant was ever a *bona fide* member of the second respondent or a lawful allottee of the stand.

The notice of appeal sets out the following grounds. I reproduce them verbatim, preserving the original wording and structure:

1. *"The learned magistrate erred at law and in fact by holding that the Appellant filed a hybrid application for rescission, spoliation, and joinder, when in truth and substance, the application before the court was solely for rescission of a default judgment that had bean granted in her absence,*

2. *The court a quo grossly misdirected itself at law by rejecting the application for rescission of default judgment on the basis of procedural impropriety, yet the Appellant had established that she had no alternative remedy available and had laid out a prima facie case for setting aside a judgment was granted in error, in her absence as an interested party.*

3. *The court a quo erred in holding that the Appellant had no direct and substantial interest in the subject matter before the court, despite clear evidence that the Appellant had been in occupation of the property in question since 2012 and had attached documentary evidence, including allocation documents and co-operative membership records,*

4. *The court a quo misdirected itself at both fact and law in not treating the Appellant as an interested or affected party who had the legal standing to seek rescission of the default judgment and the resulting writ of ejectment, which was executed against her despite her not being a cited party in the Initial proceedings."*

Although the appeal is formally against the whole judgment, the real question is narrower. The issue is whether the magistrate materially misdirected herself in characterizing the application, in assessing whether the appellant had shown a direct and substantial legal interest, and in refusing rescission and restoration on the papers before her. The appellant relied on *Mazarire* v *The Retrenchment Board & Another* SC 105/20, *Nzara & Others* v

Kashumba N.O. & Others SC 18/18, and *PG Industries (Zimbabwe) (Pvt) Ltd* v *Bvekerwa* SC 53/16 for the proposition that a court may not go on a "frolic of its own" and determine issues not placed before it. The respondents relied on *Yunus Ahmed* v *Docking Station Safaris (Pvt) Ltd* SC 70/18 for the proposition that where the heading suggests one thing and the contents of the founding affidavit and draft order reveal another, substance prevails over label. The court *a quo* referred to *Christian Aflame Ministries* v *Pentecostal Fellowship of Zimbabwe and City of Harare* HH 295/24 and *Marais* v *Pongola Sugar Milling Co Ltd* 1961 (2) SA [page unspecified on the record] (N) on joinder and direct and substantial interest; and to *Nechibvute* v *Kapeni* HH 11/21 and *Beitbridge Rural District Council* v *Russell Construction Co (Pvt) Ltd* 1998 (2) ZLR 190 (S) on rescission and the need to show good cause, explanation for default, and prospects. The respondents also invoked *Hundah* v *Murauro* 1993 (2) ZLR 401 (S) to emphasize that occupation of urban land without legal authority from the allocating authority does not, without more, generate a legally cognisable entitlement. All those authorities appear in the heads of argument or the ruling contained in the record.

The legal position I would apply is therefore this. First, a court is not bound by the caption placed on an application; it must determine the true nature of the relief from the body of the founding affidavit and the draft order. Second, joinder depends on a direct and substantial legal interest in the subject matter or in the order to be made, not merely a practical or emotional concern, still less mere physical occupation. Third, rescission by a non-party claiming to be "affected" requires more than proof of factual prejudice; it requires a demonstrable juridical interest capable of being prejudiced by the order and a proper basis for saying the order was erroneously granted in that person's absence. Fourth, restoration of possession is not ordinarily available on a spoliatory footing where deprivation occurred through execution of an extant court order. On appeal, interference is warranted only if the court *a quo* applied a wrong principle, ignored material facts, considered irrelevant matters, or reached a conclusion that cannot reasonably be sustained.

Grounds one and two are best considered first, though separately analyzed. On ground one, I am unable to agree that the Magistrate invented issues not before her. The appellant's own founding affidavit sought rescission; it also expressly sought restoration of possession after eviction; and it stated that rescission should enable her to be "joined" and defend the main proceedings. The draft order and the substantive averments thus revealed a composite application. That was the precise point made by the respondents in reliance on *Yunus Ahmed*

v Docking Station Safaris (Pvt) Ltd (*supra)*. The Magistrate's characterization was therefore anchored in the papers. This is not a case where the judicial officer decided an unargued point or manufactured a dispute. On the contrary, the Magistrate identified the actual relief emerging from the founding papers. The appellant's reliance on the cases as cited earlier is therefore misplaced. Those authorities address the impermissibility of deciding a case on issues not raised. Here, the magistrate did not do that. She decided the case on the substance of the affidavit and prayer placed before her. Ground one is dismissed.

Even if one assumes that a person not originally cited may, in an appropriate case, invoke rescission as a person affected by an order granted in her absence, the application still had to present a properly pleaded and legally coherent basis for that relief. What confronted the Magistrate was not a clean rescission application. It was a procedurally fused attempt to reopen concluded proceedings, to reverse execution already carried out, and to restore possession, all while a disputed issue of entitlement to the stand remained unresolved on the papers. The Court *a quo* was entitled to hold that the appellant had not properly separated the juridical bases for joinder, rescission, and restoration. That conclusion is supported by the structure of the founding affidavit itself and by the prayers actually sought. The Magistrate therefore did not err merely by describing the application as procedurally improper; she was identifying a real defect that went to the coherence of the relief claimed. Ground two is dismissed.

Ground three concerns direct and substantial interest. Here the appellant's case encounters its principal difficulty. She unquestionably alleged actual occupation and actual prejudice: she says she lived on the property and was removed in execution. But joinder and rescission do not turn on occupation alone. They require a legal interest, not simply a physical presence on the land. The appellant relied on alleged cooperative membership, an allocation said to pre-date the first respondent's, and prior litigation. Yet on this record she did not place before the court proof of an extant right from the allocating authority equivalent to or stronger than the material placed by the first respondent. By contrast, the first respondent's side produced a lease-to-purchase agreement and ministerial confirmations recognizing him as the lawful allottee or leaseholder. The second respondent's chairman also denied that the appellant was or had ever been a *bona fide* member or allottee. In that context, the magistrate was entitled to hold that the appellant had failed to establish the direct and substantial legal interest required. Mere occupation, without demonstrated legal entitlement, did not compel a different conclusion. Ground three is also dismissed.

Ground four adds the contention that, because the writ was executed against the appellant although she had not been cited, she automatically qualified as an interested or affected party with standing to seek rescission. That proposition is too broadly framed. Being prejudiced in fact is not always the same as being affected in law. If it were otherwise, every person in occupation under or through a cited defendant, however tenuous the basis of occupation, would be entitled as of right to rescind a judgment once execution reaches them. The record does not support such an extension. The respondents' reliance on the *Hundah* v *Murauro* case (*supra*) is apposite in that limited sense: with urban land, legal authority matters. The appellant's papers did not demonstrate a current, legally recognized entitlement from the landowner or allocating authority. Nor do the references to case number 19044/17 decisively avail her. The record contains earlier pleadings and references to a referral to the Registrar of Co-operatives, but not a complete dispositive order or record sufficient to establish, for present purposes, a binding bar of *res judicata* or an operative referral that made the 2022 proceedings void. If prescription and *res judicata* were to be dispositive, the complete prior record and the material dates needed to be squarely proved. They were not. Ground four is accordingly dismissed.

For completeness, I do not consider it necessary to uphold the separate argument of mootness advanced by the first and second respondents. The appellant sought not only rescission but also restoration of possession, so one cannot say the appeal was wholly academic in the abstract. The appeal nonetheless fails on the merits because the foundational requirement of a demonstrated legal interest was not satisfied and because the magistrate was entitled to treat the application as an impermissibly composite one on the papers filed. Equally, the appellant's reliance on South African authorities such as *Naidoo* v *Matlala N.O.* 2012 (1) SA 143 (GNB) and *Nyingwa* v *Moolman N.O*. 1993 (2) SA 508 (Tk) adds nothing decisive here. Even on the general proposition there stated, an order is "erroneously granted" only where the omitted fact would have precluded the order had it been known. On this record, the omitted fact asserted by the appellant was not a clearly established legal right, but a disputed and insufficiently proved claim to one.

In the result, I hold that the court *a quo* did not commit any reviewable or appealable misdirection. It correctly examined the substance rather than the label of the application; it was entitled to conclude that joinder, rescission, and restoration had been improperly fused; it was entitled to find that the appellant had shown factual occupation but not a direct and

substantial legal interest in the property; and it was entitled to refuse restoration that was premised on setting aside a judgment the appellant had not shown to have been erroneously granted in the relevant legal sense. The appeal must therefore be dismissed. Costs should follow the event on the ordinary scale.

It is ordered that:

1. The appeal be and is hereby dismissed.
2. The appellant shall pay the costs of appeal on the ordinary scale.

WAMAMBO J…….

MAWADZE DJP……. I agree

Zinyengere Rupapa, appellant's legal practitioners
Saunyama Dondo, first and second respondents' legal practitioners
Civil Division, third respondent's legal practitioners